

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING SECTION 5.12.100, TEMPORARY PERMITS, OF CHAPTER 5.12, ALCOHOLIC LIQUOR AND MALT BEVERAGES, OF TITLE 5, BUSINESS LICENSES AND REGULATIONS, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 12.100, Temporary permits, of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, is hereby amended as set out in this ordinance. Sections currently existing in Chapter 5.12 not set out within this ordinance remain unchanged.

12.100 Temporary permits.

D. The chief of police, or authorized designee, may ~~revoke~~ temporarily suspend for no longer than four (4) hours any temporary permit issued under this chapter to maintain peace and order; health, safety and welfare of the public; for situations in which an emergency arises, or where there is an immediate threat to the security, property and welfare of any member of the public. The chief of police, or authorized designee, will work with the permittee to regain order; health, safety and welfare of the public and reinstate the permit at the earliest opportunity, if it can be done safely. The chief of police will submit a report to the governing body within twenty-four (24) hours of the suspension of the permit outlining the specific reasons for the emergency suspension. Only the governing body has the authority to revoke a temporary permit. The governing body shall hold an emergency hearing if requested by the chief of police or city clerk to revoke any temporary permit. The governing body shall convene and consider the revocation request within twenty-four (24) hours of the request for revocation. If the permit has expired, the hearing may be held during a regularly scheduled meeting. The governing body shall receive testimony from city officials and the holder of the temporary permit and reach a conclusion on the request to revoke the temporary permit by a majority vote of the governing body within twenty-four (24) hours of the hearing.

Section 2. This ordinance shall become effective upon its passage and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

Marian J. Orr, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk